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Cases Argued and Determined

in the

UNITED STATES COURTS OF APPEALS

UNITED STATES COURT OF CLAIMS

UNITED STATES COURT OF CUSTOMS AND PATENT APPEALS

AND

UNITED STATES EMERGENCY COURT OF APPEALS

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rected, was clear violation of National Labor Relations Act. National Labor Relations Act, § 8(b) (4) (A) as amended 29 U.S.C.A. § 158(b) (4) (A).

2. Labor Relations ⊂=617

Peaceful primary picketing and its normal incidents, including requests to neutrals not to cross picket line, cannot be forbidden by National Labor Relations Board though union has acted illegally elsewhere.

Mr. Herbert S. Thatcher, Washington, D. C., with whom Mr. David Previant, Milwaukee, Wis., was on the brief, for petitioner.

Mr. Hans J. Lehmann, Atty., N. L. R. B., with whom Messrs. Stuart Rothman, General Counsel, N. L. R. B., Dominick L. Manoli, Assoc. Gen. Counsel, N. L. R. B., and Marcel Mallet-Prevost, Asst. Gen. Counsel, N. L. R. B., were on the brief, for respondent.

Mr. Harry S. Littman, Washington, D. C., filed a brief on behalf of McJunkin Corp., as amicus curiae, urging affirmance.

Before WILBUR K. MILLER, Chief Judge, EDGERTON and WASHINGTON, Circuit Judges.

PER CURIAM.

[1, 2] In aid of a strike against McJunkin Corporation in Charleston, West Virginia, the union (1) picketed its plant, (2) told employees of neutral trucking concerns, over the telephone, that the plant was picketed, expressly or impliedly asking them to respect the picket line, and (3) at the premises of one neutral concern, Miami Transportation Company, induced its employees not to unload a McJunkin truck for transshipment. This last was a clear violation of § 8(b) (4) (A) of the National Labor Relations Act as amended, 29 U.S.C. § 158(b) (4) (A), but there was no evidence that any other action of the union had any illegal purpose or effect. The Board's order is apparently intended to prevent the union from inducing employees of any trucking concern to respect the picket line at McJunkin's plant. But peaceful primary picketing and its normal incidents, including requests to neutrals not to cross the picket line, cannot be forbidden though the union has acted illegally elsewhere. The case will be remanded to the Board with directions to modify its order so that it will not be broader than the one the Hearing Examiner had recommended. As so modified, the order will be enforced.

Order modified.

WILBUR K. MILLER, Chief Judge (dissenting).

My view is that the Board's order should be enforced without modification.



William P. ROGERS, Attorney General of the United States, Appellant,

v.

CHENG FU SHENG and Lin Fu Mei, Appellees.

CHENG FU SHENG and Lin Fu Mei, Appellants,

v.

Robert F. KENNEDY, Attorney General of the United States, Appellee.

Nos. 15487, 16121.

United States Court of Appeals
District of Columbia Circuit.

Order Entered May 8, 1961.

Opinion Filed July 6, 1961.

Suit by aliens to bar their deportation. On appeal from an order of the United States District Court, Holtzoff, J., dismissing the action and on answers to an order to show cause why reviewing court's prior judgment should not be amended to clarify the prior decision, 280 F.2d 663, the Court of Appeals held

that where aliens sued to bar their deportation on ground that Formosa, to which they were to be deported, was not a "country" within Immigration and Nationality Act, and that deportation would result in physical persecution, and trial court did not pass on persecution claim in rendering summary judgment for aliens, and reviewing court reversed and remanded with directions to grant summary judgment for government, persecution claim was open for consideration and disposition upon remand and court erred in granting summary judgment on both claims on remand.

Former judgment of reviewing court amended, judgment of trial court on mandate vacated and appeal from such judgment remanded, and stay of deportation continued.

Courts ⇐406.9(15)

Where aliens sued to bar their deportation on ground that Formosa, to which they were to be deported, was not a "country" and that deportation would result in physical persecution, and trial court did not pass on persecution claim in rendering summary judgment for aliens, and reviewing court reversed and remanded with directions to grant summary judgment for government, persecution claim was open for consideration and disposition upon remand and court erred in granting summary judgment on both claims on remand.

Messrs. Jack Wasserman and David Carliner, Washington, D. C., for Cheng Fu Sheng, and others.

Mr. Oliver Gasch, U. S. Atty., at the time the answer of the Attorney General to the order to show cause was filed, Mr. Carl W. Belcher, Asst. U. S. Atty., at the time the answer was filed, and Mr. Abbott A. Leban, Asst. U. S. Atty., were on the answer of the Atty. Gen. to the order to show cause.

Before Mr. Justice REED, retired,* BAZELON and WASHINGTON, Circuit Judges.

PER CURIAM.

This litigation is before us a second time. When Cheng Fu Sheng and Lin Fu Mei first instituted suit to bar their deportation, their complaint alleged two separate claims: first, that Formosa, to which they were to be deported, was not a "country" within the meaning of the Immigration and Nationality Act § 243 (a), 66 Stat. 212 (1952), 8 U.S.C.A. § 1253(a); and, second, that the Attorney General had abused his discretion in refusing to withhold deportation on the ground that it would result in physical persecution, Immigration and Nationality Act § 243(h), 66 Stat. 214 (1952), 8 U.S.C.A. § 1253(h). The District Court, in rendering summary judgment for the aliens on the Formosa issue, did not pass upon the persecution claim. Cheng Fu Sheng v. Rogers, D.D.C.D.C.1959, 177 F. Supp. 281. The Attorney General appealed, our No. 15487, stating as the sole point on appeal that the District Court had erred in its ruling on Formosa. Thus, this was the only issue properly presented to the court for its consideration. See D.C.Cir.Gen.R. 15, 17(g), 28 U.S.C.A. We reversed, Rogers v. Cheng Fu Sheng, 108 U.S.App.D.C. 115, 117, 280 F.2d 663, 665, certiorari denied 1960, 364 U.S. 891, 81 S.Ct. 222, 5 L.Ed. 2d 187, and remanded the case "with directions to grant summary judgment for the appellant [Attorney General]."

Upon remand, the District Court vacated its prior order, granted the Government's motion for summary judgment, and ordered "that plaintiff's action be * * * dismissed with prejudice." The instant appeal, No. 16121, is from that order, the aliens urging that the District Court erred in applying this court's mandate when it granted the Government's motion for summary judgment on the persecution claim as well as the Formosa issue.

* Sitting by designation pursuant to Section 294(a), Title 28, U.S.Code.

By order of February 6, 1961, we stayed deportation and denied the Government's motion to affirm or dismiss, "the court being of the opinion that its previous opinion and judgment * * * considered and disposed of only the issues therein discussed * * *." Since the persecution claim presented a separate claim for relief, which was not, and properly could not have been, considered and disposed of by this court, see Fountain v. Filson, 1949, 336 U.S. 681, 69 S. Ct. 754, 93 L.Ed. 971, reversing 84 U.S. App.D.C. 46, 171 F.2d 999 (1948), it was open for consideration and disposition upon remand, see Communist Party of U. S. v. Subversive Activities Control Board, 1958, 102 U.S.App.D.C. 395, 402–403, 254 F.2d 314, 321–22.

As it appeared from the record that the District Court on remand may well have misinterpreted our judgment in No. 15487 and therefore erred in granting summary judgment on both claims, we issued on April 3, 1961, an order to show cause why our judgment should not be amended to clarify our decision, and the District Court's judgment on mandate vacated. In response, the Government suggested that this court dispose of the persecution issue without remand. Inasmuch as the claim has not been passed upon by the District Court, and was neither ripe for decision nor properly before this court previously, we believe that remand to the lower court is the preferable procedure. See Cahill v. New York, N. H. & H. R. R., 1956, 351 U.S. 183, 76 S.Ct. 758, 100 L.Ed. 1075. Therefore, we have ordered that the judgment in No. 15487 be amended to indicate that summary judgment only on the Formosa issue was directed, that the judgment on mandate be vacated and No. 16121 remanded for further proceedings not inconsistent with the amended judgment, and that the stay of deportation be continued pending disposition of the case before the District Court.

It is so ordered.

DIVISION 1142, AMALGAMATED ASSOCIATION OF STREET ELECTRIC RAILWAY AND MOTOR COACH EMPLOYEES OF AMERICA, AFL-CIO, Petitioner,

v.

NATIONAL LABOR RELATIONS BOARD, Respondent.

No. 16007.

United States Court of Appeals District of Columbia Circuit.

Argued May 15, 1961.

Decided July 6, 1961.

Petition for Rehearing En Banc Denied En Banc Sept. 12, 1961.

Petition to review and set aside an order of the National Labor Relations Board dismissing in its entirety a complaint based on charges that the employer had engaged in unfair labor practices by refusing to bargain in good faith and engaging in surveillance of union representatives. The Court of Appeals, Bastian, Circuit Judge, held that evidence supported the finding that the employer, which was in an insecure financial position, had not refused to bargain in good faith.

Affirmed.

Washington, Circuit Judge, dissented.

1. Labor Relations ⇐574

Evidence supported finding that employer, which was in insecure financial position, had not refused to bargain in good faith. National Labor Relations Act, § 8(a) (1, 5) as amended by Labor Management Relations Act, 1947, 29 U.S. C.A. § 158(a) (1, 5).

2. Evidence ⇐5(2)

It is common knowledge that tempers rise and industrial strife results from incidents which develop from concentrations of automobiles and striking employees at or near employer's premises, generally speaking, at night.